

Court No. - 37

Case :- WRIT - C No. - 18742 of 2012

Petitioner :- Smt. Vidya Singh And Another

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Anshu Chaudhary

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

Shri H.P. Dube, learned counsel appearing for respondent nos. 2 and 3 prays for and is allowed two days' time to seek instructions in the matter.

Put up on **20.4.2012** in the additional cause list.

Order Date :- 16.4.2012

RKP

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Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Anshu Chaudhary

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

1. We have heard learned counsel for the petitioners, Sri H.P. Dube, learned counsel appears for respondent nos.2 & 3 and learned Standing counsel appears for respondent nos. 1 & 4.

2. This writ petition is directed against the recovery certificate for recovering the demand of electricity dues of Rs.32,80,217/- and the citation including the recovery charges of Rs.34,53,417/-, on the ground that the petitioners have not played any mischief, nor tampered with the meter installed to record the actual consumption of electricity.

3. It is submitted by learned counsel for the petitioners that petitioner no.1 has let out the commercial complex situated at Ravinder Puri, Ghazipur, to V. Mart Retails Ltd., the petitioner no.2. Petitioner no.1 had applied for electricity connection, which was sanctioned with the contract demand of 125 K.V.A. installed at the complex, for which a meter no.08113923 has been installed and the billing is made as HV-2 Consumer. It is the duty of the respondents to install a tested meter and once the meter is installed then it is to be presumed that it is accurately recording the consumption for billing in accordance with the tariff schedule.

4. It is alleged that on 25.08.2011 a check meter was installed by the respondents without informing the petitioners and on the basis of that check meter, a false reading was reported, raising the disputed

bills alleging excessive consumption.

5. Sri H.P. Dube, learned counsel for the respondents submits that there are no allegations of mischief or tampering with the meter. By way of routine exercise, the connection was checked, on which it was found that in the main meter P.T. phase matching was reversed, on which the meter was not recording the actual consumption. The phase matching was corrected, after which the actual consumption was recorded and accordingly it was found that the average bill should be Rs.2,28,064/- per month from November, 2010, to August, 2011, with fixed demand charge of Rs.37,260/- per month and energy charge adding the excess demand charge of Rs.17,020/- and ED Rs.1,054/- per month. The petitioners have paid only Rs.1,15,264/- on 16.3.2011, and Rs.32,684/- on 25.5.2011 for the period 13.10.2010 to August, 2011. Consequently, calculations were made and a revised bill was sent, which is under dispute.

6. Sri H.P. Dube informs the Court that no case of tampering or theft has been recorded. It was found that the meter was not recording the electricity consumption correctly on a technical defect. The readings were taken after removing the defects. He submits that the petitioner has not raised any dispute with the department. She has a right under Clause 6.5 of the U.P. Electricity Supply Code, 2005 to raise a dispute with regard to the correct billing and the arrears.

7. Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides that if a consumer disputes the accuracy of any bill, he may either make the payment under protest of - (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided

within seven days and the consumer shall be informed.

8. In the present case the petitioners have not denied the correctness of the bill of March, 2011, amounting to Rs.1,15,264/-, paid on 11.3.2011. The petitioner has paid only Rs.2,28,000/- in the last 15 months and according to the department the petitioner is liable to pay Rs.22,70,830/-, we find that the admitted average of electricity bills of preceding six months will be lesser and if the petitioner deposits the six times of the admitted bill of Rs.1,15,264/-, he is entitled to get the dispute decided.

9. It is neither appropriate nor possible for the Court to decide the dispute of correctness of the bill, involving technical aspects in recording consumption of electricity.

10. We, therefore, direct that in case the petitioner deposits six times of the admitted bill of Rs.1,15,264/- and raises a dispute before the Executive Engineer, within a period of 15 days from today, the dispute will be decided by a reasoned order within seven days, as provided in Clause 6.5 of the Supply Code, 2005.

11. Until the decision of the dispute, the petitioner will continue to pay the future bills, on the basis of actual recorded consumption. The recovery of arrears shall remain stayed till the decision of the dispute.

12. We further direct that on the deposit of six times of the admitted bill of March, 2011 of Rs.1,15,264/-, the petitioner's electricity connection will be restored subject to the condition that the petitioner continues to deposit the future bills regularly within the time prescribed in the bill.

13. The writ petition is disposed of with these directions.

Order Date :- 20.4.2012

Kpy